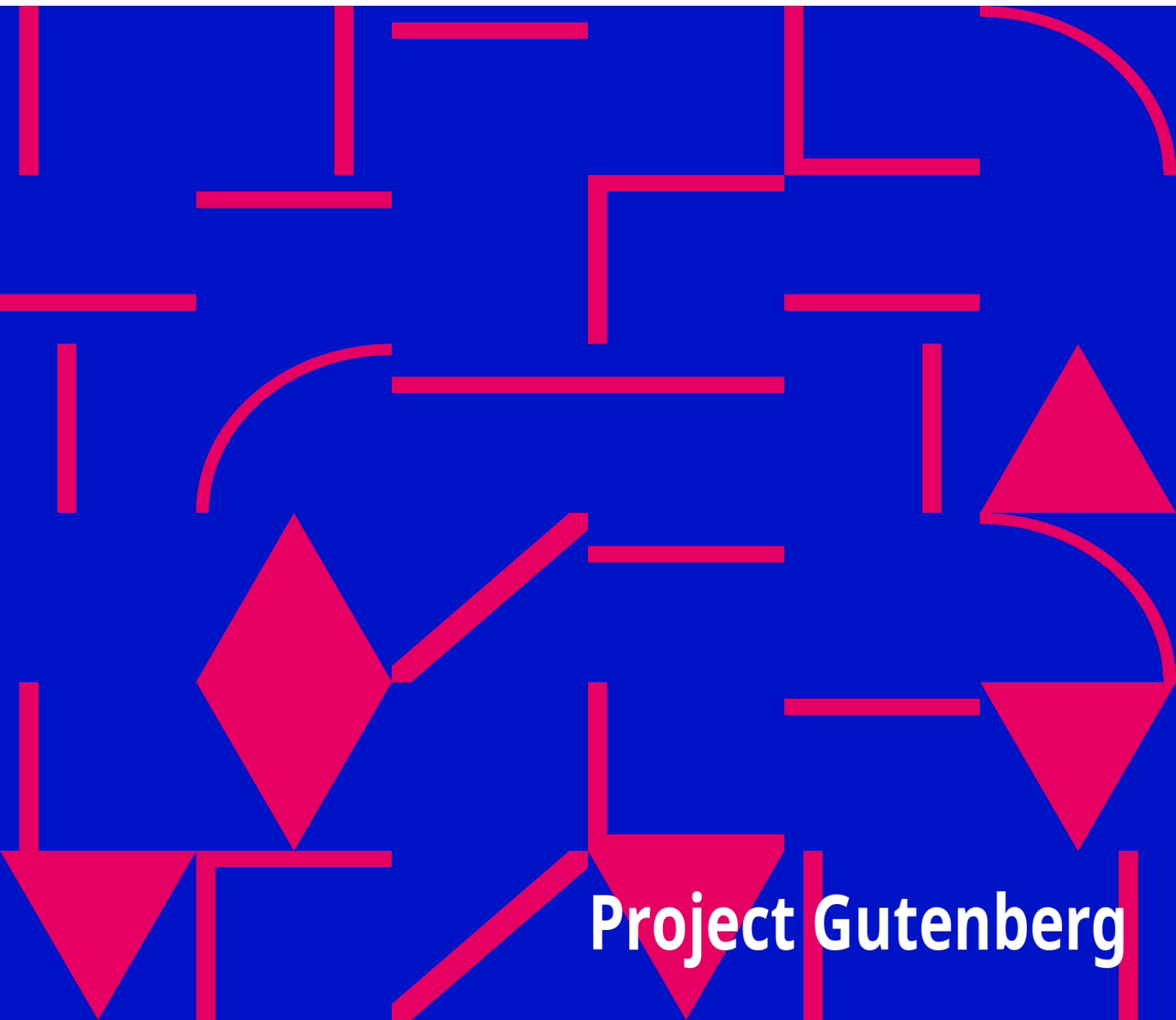


The Life of Buddha and Its Lessons

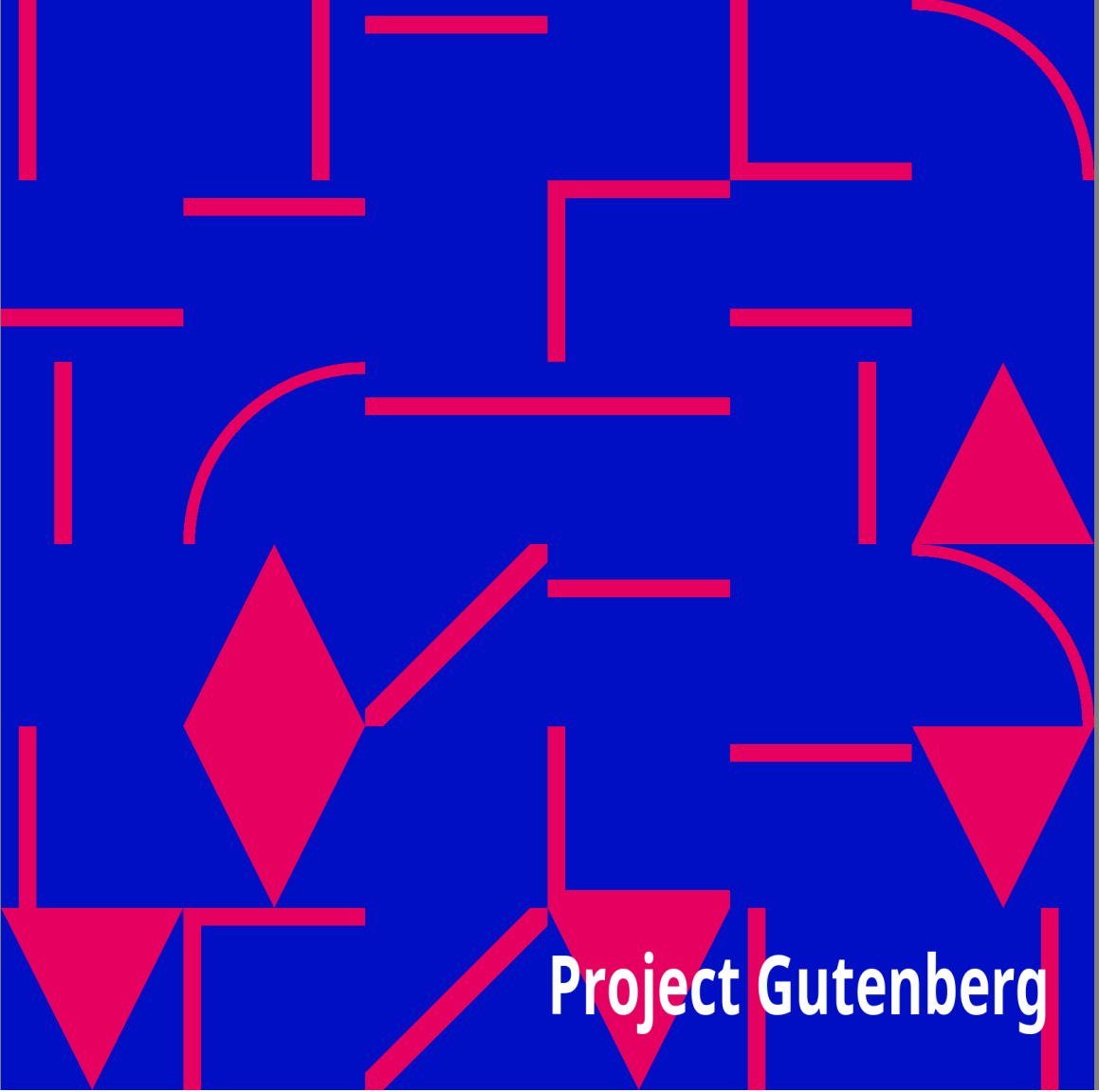
Henry Steel Olcott

The background of the lower half of the image is a solid blue field. Overlaid on this field is a complex, abstract pattern of bright red geometric elements. These elements include straight lines of varying lengths and orientations, some forming right angles or T-junctions. There are also several curved lines, some of which form semi-circles or arcs. Scattered throughout are various solid red shapes: triangles of different sizes and orientations, a diamond shape, and a square. The overall effect is a dynamic, non-representational composition that suggests movement and structure.

Project Gutenberg

The Life of Buddha and Its Lessons

Henry Steel Olcott



Project Gutenberg

The Project Gutenberg eBook of The Life of Buddha and Its Lessons

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Life of Buddha and Its Lessons

Author: Henry Steel Olcott

Release date: April 17, 2006 [eBook #18194]

Language: English

Other information and formats: www.gutenberg.org/ebooks/18194

Credits: Produced by Marilynda Fraser-Cunliffe, Sankar Viswanathan,
and the Online Distributed Proofreading Team at
<http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE LIFE OF
BUDDHA AND ITS LESSONS ***

ADYAR PAMPHLETS

No. 15

The Life of Buddha and Its Lessons

BY

H. S. OLCOTT

THEOSOPHICAL PUBLISHING HOUSE

ADYAR, MADRAS, INDIA

First Edition: May 1912

Second Edition: Sept. 1919

The Life of Buddha and Its Lessons

The thoughtful student, in scanning the religious history of the race, has one fact continually forced upon his notice, viz., that there is an invariable tendency to deify whomsoever shows himself superior to the weakness of our common humanity. Look where we will, we find the saint-like man exalted into a divine personage and worshipped for a god. Though perhaps misunderstood, reviled and even persecuted while living, the apotheosis is almost sure to come after death: and the victim of yesterday's mob, raised to the state of an Intercessor in Heaven, is besought with prayer and tears, and placatory penances, to mediate with God for the pardon of human sin. This is a mean and vile trait of human nature, the proof of ignorance, selfishness, brutal cowardice, and a superstitious materialism. It shows the base instinct to put down and destroy whatever or whoever makes men feel their own imperfections; with the alternative of ignoring and denying these very imperfections by turning into gods men who have merely spiritualised their natures, so that it may be supposed that they were heavenly incarnations and not mortal like other men.

This process of euhemerisation, as it is called, or the making of men into gods and gods into men, sometimes, though more rarely, begins during the life of the hero, but usually after death. The true history of his life is gradually amplified and decorated with fanciful incidents, to fit it to the new character which has been posthumously given him. Omens and portents are now made to attend his earthly avatāra: his precocity is described as superhuman: as a babe or lisping child he silences the wisest logicians by his divine knowledge: miracles he produces as other boys do soap-bubbles: the terrible energies of nature are his playthings: the gods, angels, and demons are his habitual attendants: the sun, moon, and all the starry host wheel around his cradle in joyful measures, and the earth thrills with joy at having borne such a prodigy: and at his last hour of mortal life the whole universe shakes with conflicting emotions.

Why need I use the few moments at my disposal to marshal before you the various personages of whom these fables have been written? Let it suffice to recall the interesting fact to your notice, and invite you to compare the respective biographies of the Brāhmaṇical Kṛṣṇa, the Persian Zoroaster, the Egyptian Hermes, the Indian Gauṭama, and the canonical, especially the apocryphal, Jesus. Taking Kṛṣṇa or Zoroaster, as you please, as the most ancient, and coming down the chronological line of descent, you will find them all made after the same pattern. The real personage is all covered up and concealed under the embroidered veils of the romancer and the enthusiastic historiographer. What is surprising to me is that this tendency to exaggeration and hyperbole is not more commonly allowed for by those who in our days attempt to discuss and compare religions. We are constantly and painfully reminded that the prejudice of inimical critics, on the one hand, and the furious bigotry of devotees, on the other, blind men to fact and probability, and lead to gross injustice. Let me take as an example the mythical biographies of Jesus. At the time when the Council of Nicea was convened for settling the quarrels of certain bishops, and for the purpose of examining into the canonicity of the three hundred more or less apocryphal gospels that were being read in the Christian churches as inspired writings, the history of the life of Christ had reached the height of absurd myth. We may see some specimens in the extant books of the apocryphal New Testament, but most of them are now lost. What have been retained in the present Canon may doubtless be regarded as the least objectionable. And yet we must not hastily adopt even this conclusion, for you know that Sabina, Bishop of Heracha, himself speaking of the Council of Nicea, affirms that "except Constantine and Sabinus, Bishop of Pamphilus, these bishops were a set of illiterate, simple creatures that understood nothing"; which is as though he had said they were a pack of fools. And Pappus, in his *Synodicon* to that Council of Nicea, lets us into the secret that the Canon was not decided by a careful comparison of several gospels before them, but by a *lottery*. Having, he tells us, "promiscuously put all the books that were referred to the Council for determination under a Communion table in a church, they (the bishops) besought the Lord that the inspired writings might get up on the table, while the spurious writings remained underneath, and *it happened accordingly*".

But letting all this pass and looking only to what is contained in the present Canon, we see the same tendency to compel all nature to attest the divinity of the writer's hero. At the nativity a star leaves its orbit and leads the Persian astrologers to the divine child, and angels come and converse with shepherds, and a whole train of like celestial phenomena occurs at various stages of his earthly career, which closes amid earthquakes, a pall of darkness over the whole scene, a supernatural war of the elements, the opening of graves and the walking about of their tenants, and other appalling wonders. Now, if the candid Buḍḍhist concedes that the real history of Gauṭama is embellished by like absurd exaggerations, and if we can find their duplicates in the biographies of Zoroaster, Shaṅkarāchārya and other real personages of antiquity, have we not the right to conclude that the true history of the Founder of Christianity, if at this late date it were possible to write it, would be very different from the narratives that pass current? We must not forget that Jerusalem was at that time a Roman dependency, just as Ceylon is now a British, and that the silence of contemporary Roman historians about any such violent disturbances of the equilibrium of nature is deeply significant.

I have cited this example for the sole and simple purpose of bringing home to the non-Buḍḍhistic portion of my present audience the conviction that, in considering the life of Sākya Muni and the lessons it teaches, they must not make his followers of to-day responsible for any extravagant exuberances of past biographers. The doctrine of Buḍḍha and its effects are to be judged quite apart from the man, just as the doctrine ascribed to Jesus and its effects are to be considered quite irrespectively of his personal history. And—as I hope I have shown—the actual doings and sayings of every founder of a Faith or a school of philosophy must be sought for under a heap of tinsel and rubbish contributed by successive generations of followers.

Approaching the question of the hour in this spirit of precaution, what do we find are the probabilities respecting the life of Sākya Muni? Who was he? When did he live? How did he live? What did he teach? A most careful comparison of authorities and analysis of evidence establishes, I think, the following data:

1. He was the son of a king.

2. He lived between six and seven centuries before Christ.

3. He resigned his royal state and went to live in the jungle, and among the lowest and most unhappy classes, so as to learn the secret of human pain and misery by personal experience: tested every known austerity of the Hindū ascetics and excelled them all in his power of endurance: sounded every depth of woe in search of the means to alleviate it: and at last came out victorious, and showed the world the way to salvation.

4. What he taught may be summed up in a few words, as the perfume of many roses may be distilled into a few drops of *attar*: Everything in the world of Matter is unreal; the only reality is in the world of Spirit. Emancipate yourselves from the tyranny of the former; strive to attain the latter. The Rev. Samuel Beal, in his *Catena of Buddhist Scriptures from the Chinese* puts it differently. "The idea underlying the Buddhist religious system is," he says, "simply this: 'all is vanity'. Earth is a show, and Heaven is a vain reward." Primitive Buddhism was engrossed, absorbed, by one thought—the vanity of finite existence, the priceless value of the one condition of Eternal Rest.

If I have the temerity to prefer my own definition of the spirit of Buddha's doctrine, it is because I think that all the misconceptions of it have arisen from a failure to understand his idea of what is real and what is unreal, what worth longing and striving for and what not. From this misconception have come all the unfounded charges that Buddhism is an "atheistical," that is to say, a grossly materialistic, a nihilistic, a negative, a vice-breeding religion. Buddhism denies the existence of a personal God—true: therefore—well, therefore, and notwithstanding all this, its teaching is neither what may be called properly atheistical, nihilistic, negative, nor provocative of vice. I will try to make my meaning clear, and the advancement of modern scientific research helps in this direction. Science divides the universe for us into two elements—matter and force; accounting for their phenomena by their combinations, and making both eternal and obedient to eternal and immutable law. The speculations of men of science have carried them to the outermost verge of the physical universe. Behind them lie not only a thousand brilliant triumphs by which a part of Nature's secrets have been wrung from her, but also more thousands of failures to fathom her deep mysteries. They have proved thought material, since it is the evolution of

the gray tissue of the brain, and a recent German experimentalist, Professor Dr. Jäger, claims to have proved that man's soul is "a volatile odoriferous principle, capable of solution in glycerine". Psychogen is the name he gives to it, and his experiments show that it is present not merely in the body as a whole, but in every individual cell, in the ovum, and even in the ultimate elements of protoplasm. I need hardly say to so intelligent an audience as this, that these highly interesting experiments of Dr. Jäger are corroborated by many facts, both physiological and psychological, that have been always noticed among all nations; facts which are woven into popular proverbs, legends, folk-lore fables, mythologies and theologies, the world over. Now, if thought is matter and soul is matter, then Buḍḍha, in recognising the impermanence of sensual enjoyment or experience of any kind, and the instability of every material form, the human soul included, uttered a profound and scientific truth, And since the very idea of gratification or suffering is inseparable from that of material being—absolute SPIRIT alone being regarded by common consent as perfect, changeless and Eternal—therefore, in teaching the doctrine that conquest of the material self, with all its lusts, desires, loves, hopes, ambitions and hates, frees one from pain, and leads to Nirvāṇa, the state of Perfect Rest, he preached the rest of an untinged, untainted existence in the Spirit. Though the soul be composed of the finest conceivable substance, yet if substance at all—as Dr. Jäger seems able to prove, and ages of human intercourse with the weird phantoms of the shadow world imply—it must in time perish. What remains is that changeless part of man, which most philosophers call Spirit, and Nirvāṇa is its necessary condition of existence. The only dispute between Buḍḍhist authorities is whether this Nirvāṇic existence is attended with individual consciousness, or whether the individual is merged in the whole, as the extinguished flame is lost in the air. But there are those who say that the flame has not been annihilated by the blowing out. It has only passed out of the visible world of matter into the invisible world of Spirit, where it still exists and will ever exist, as a bright reality. Such thinkers can understand Buḍḍha's doctrine and, while agreeing with him that soul is not immortal, would spurn the charge of materialistic nihilism, if brought against either that sublime teacher or themselves.

The history of Sākya Muni's life is the strongest bulwark of his religion. As long as the human heart is capable of being touched by tales of heroic self-

sacrifice, accompanied by purity and celestial benevolence of motive, it will cherish his memory. Why should I go into the particulars of that noble life? You will remember that he was the son of the king of Kapilavastu—a mighty sovereign whose opulence enabled him to give the heir of his house every luxury that a voluptuous imagination could desire: and that the future Buḍḍha was not allowed even to know, much less observe, the miseries of ordinary existence. How beautifully Edwin Arnold has painted for us in *The Light of Asia* the luxury and languor of that Indian Court, "where love was gaoler and delights its bars". We are told that:

The king commanded that within those walls
No mention should be made of age or death
Sorrow or pain, or sickness ...
And every dawn the dying rose was plucked,
The dead leaves hid, all evil sights removed:
For said the king, "If he shall pass his youth
Far from such things as move to wistfulness
And brooding on the empty eggs of thought,
The shadow of this fate, too vast for man,
May fade, belike, and I shall see him grow
To that great stature of fair sovereignty,
When he shall rule all lands—if he *will rule*—
The king of kings and glory of his time."

You know how vain were all the precautions taken by the father to prevent the fulfilment of the prophecy that his beloved son would be the coming Buḍḍha. Though all suggestions of death were banished from the royal palace, though the city was bedecked with flowers and gay flags, and every painful object removed from sight when the young Prince Siḍḍārtha visited it, yet the decrees of destiny were not to be baffled, the "voices of the spirits," the "wandering winds" and the ḍevas, whispered the truth of human sorrows into his listening ear, and when the appointed hour arrived, the Suḍḍha Ḍevas threw the spell of slumber over the household, steeped in profound lethargy the sentinels (as we are told was done by an angel to the gaolers of Peter's prison), rolled back the triple gates of bronze, strewed the sweet moghra-flowers thickly beneath his horse's feet to muffle every sound, and he was free. Free? Yes—to resign every earthly comfort, every

sensuous enjoyment, the sweets of royal power, the homage of a Court, the delights of domestic life: gems, the glitter of gold: rich stuffs, rich food, soft beds: the songs of trained musicians, and of birds kept prisoners in gay cages, the murmur of perfumed waters plashing in marble basins, the delicious shade of trees in gardens where art had contrived to make nature even lovelier than herself. He leaps from his saddle when at a safe distance from the palace, flings the jewelled rein to his faithful groom, Channa, cuts off his flowing locks, gives his rich costume to a hunter in exchange for his own, plunges into the jungle, and is free:

To tread its paths with patient, stainless feet,
 Making its dusty bed, its loneliest wastes
My dwelling, and its meanest things my mates:
 Clad in no prouder garb than outcasts wear,
Fed with no meals save what the charitable
 Give of their will, sheltered by no more pomp,
Than the dim cave lends or the jungle-bush.
 This will I do because the woeful cry
Of life and all flesh living cometh up
 Into my ears, and all my soul is full
Of pity for the sickness of this world:
 Which I will heal, if healing may be found
By uttermost renouncing and strong strife.

Thus masterfully does Sir Edwin Arnold depict the sentiment which provoked this Great Renunciator. The testimony of thousands of millions who, during the last twenty-five centuries, have professed the Buddhist religion, proves that the secret of human misery was at last solved by this divine self-sacrifice, and the true path to Nirvāṇa opened.

The joy that he brought to the hearts of others, Buddha first tasted himself. He found that the pleasures of the eye, the ear, the taste, touch and smell are fleeting and deceptive: he who gives value to them brings only disappointment and bitter sorrow upon himself. The social differences between men he found were equally arbitrary and illusive; caste bred hatred and selfishness; riches strife, envy and malice. So in founding his Faith he laid the bottom of its foundation-stones upon all this worldly dirt, and its dome in the clear serene of the world of Spirit. He who can mount to a clear

conception of Nirvāṇa will find his thought far away above the common joys and sorrows of petty men. As to one who ascends to the top of Chimborazo or the Himālayan crags, and sees men on the earth's surface crawling to and fro like ants, so equally small do bigots and sectarians appear to him. The mountain climber has under his feet the very clouds from whose sun-painted shapes the poet has figured to himself the golden streets and glittering domes of the materialistic Heaven of a personal God. Below him are all the various objects out of which the world's pantheons have been manufactured: around, above—Immensity. And so also, far down the ascending plane of thought that leads from the earth towards the Infinite, the philosophic Buḍḍhist describes, at different plateaux, the heavens and hells, the gods and demons, of the materialistic creed-builders.

What are the lessons to be derived from the life and teachings of this heroic prince of Kapilavastu? Lessons of gratitude and benevolence. Lessons of tolerance for the clashing opinions of men who live, move and have their being, think and aspire, only in the material world. The lesson of a common tie of brotherhood among all men. Lessons of manly self-reliance, of equanimity in breasting whatsoever of good or ill may happen. Lessons of the meanness of the rewards, the pettiness of the misfortunes of a shifting world of illusions. Lessons of the necessity for avoiding every species of evil thought and word, and for doing, speaking and thinking everything that is good, and for the bringing of the mind into subjection so that these may be accomplished without selfish motive or vanity. Lessons of self-purification and communion, by which the illusiveness of externals and the value of internals are understood.

Well might St. Hilaire burst into the panegyric that Buḍḍha "is the perfect model of all the virtues he preaches ... his life has not a stain upon it". Well might the sober critic Max Müller pronounce his moral code "one of the most perfect which the world has ever known". No wonder that in contemplating that gentle life Edwin Arnold should have found his personality "the highest, gentlest, holiest and most beneficent ... in the history of thought," and been moved to write his splendid verses. It is twenty-five hundred years since humanity put forth such a flower: who knows when it did before?

Gauṭama Buḍḍha, Sākya Muni, has ennobled the whole human race. His fame is our common inheritance. His Law is the law of Justice, providing for every good thought, word and deed its fair reward, for every evil one its proper punishment. His law is in harmony with the voices of Nature, and the evident equilibrium of the universe. It yields nothing to importunities or threats, can be neither coaxed nor bribed by offerings to abate or alter one jot or tittle of its inexorable course. Am I told that Buḍḍhist laymen display vanity in their worship and ostentation in their almsgiving; that they are fostering sects as bitterly as Hinḍūs? So much the worse for the laymen: there is the example of Buḍḍha and his Law. Am I told that Buḍḍhist priests are ignorant, idle fosterers of superstitions grafted on their religion by foreign kings? So much the worse for the priests: the life of their Divine Master shames them and shows their unworthiness to wear his yellow robe or carry his beggar's bowl. There is the Law—immutable—menacing; it will find them out and punish.

And what shall we say to those of another caste of character—the humble-minded, charitable, tolerant, religiously aspiring hearts among the laity, and the unselfish, pure and learned of the priests who know the Precepts and keep them? The Law will find them out also; and when the book of each life is written up and the balance struck, every good thought or deed will be found entered in its proper place. Not one blessing that ever followed them from grateful lips throughout their earthly pilgrimage will be found to have been lost; but each will help to ease their way as they move from stage to stage of Being

UNTO NIRVĀṆA WHERE THE SILENCE LIVES.

THE ADYAR PAMPHLETS

Vol. IX.

97. Occultism.	Annie Besant
98. Brotherhood.	Dr. Th. Pascal
99. Life After Death.	Annie Besant
100. Difficulties in Clairvoyance.	C. W. Leadbeater
101. Is Belief in the Masters Superstitious or Harmful?	Annie Besant
102. The Case for Reincarnation.	B. Douglas Fawcett
103. Memory.	Annie Besant
104. Spiritualism and Theosophy.	H. S. Olcott
105. The Kabbalah and the Kabbalists.	H. P. Blavatsky

Annual Subscription: Re. 1-8 or 2s. or 50c. *Postage Free.*

Single Copy: As. 2 or 2d, or 4c. *Postage Extra.*

Theosophical Publishing House, Adyar, Madras

*** END OF THE PROJECT GUTENBERG EBOOK THE LIFE OF
BUDDHA AND ITS LESSONS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.